

Contract Labour (Regulation and Abolition) Assam Rules 1971

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State of Assam - Act

Contract Labour (Regulation and Abolition) Assam Rules 1971

ASSAM

India

Contract Labour (Regulation and Abolition) Assam Rules 1971

Rule CONTRACT-LABOUR-REGULATION-AND-ABOLITION-ASSAM-RULES-1971 of 1971

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Contract Labour (Regulation and Abolition) Assam Rules 1971

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(Assam Rules XX of 1971)

Notification No. GLR 512/70/92. - In exercise of the powers conferred by Section 35(1) of the Contract Labour Regulation and Abolition Act, 1970, the Governor of Assam is pleased to publish the following Model Rules framed by the Government of India for adopting the same in the State of Assam :

Chapter I

1.

Short title and extent.

(1)

These rules may be called the Contract Labour (Regulation and Abolition) Assam Rules, 1971.

(2)

They shall extend to the whole of Assam.

2.

Definitions.

- In these Rules unless the subject or context otherwise requires-

(a)

"Act" means the Contract Labour (Regulation and Abolition) Act, 1970;

(b)

"Appellate Officer" means the Appellate Officer appointed by the Government of Assam under sub-section (1) of Section 15 ;

(c)

"Board" means the State Advisory Board constituted under Section 4 ;

(d)

"Chairman" means the Chairman of the Board ;

(e)

"Committee" means a committee constituted under sub-section (1) of Section 5;

(f)

"Form" means a form appended to these rules ;

(g)

"Section" means a section of the Act.

Chapter II

State Board

3.

Constitution of the Board.

- The Board shall consist of the following members :

(a)

a Chairman to be appointed by the Government of Assam ;

(b)

the Labour Commissioner, Assam, ex-officio ;

(c)

one person representing the State Government, to be appointed by the Government of Assam, from among its officials ;

(d)

one person representing State Public Works Department to be appointed by the State Government, after consultation with the Public Works Department;

(e)

four persons representing different employing concerns including contractors, industries or State Government Departments, to whom the Act applies after consultation with such organisation of the employers, if any, as may be recognised by the State Government in this behalf;

(f)

five persons representing workmen in different employing concerns, including contractors, industries or State Government Departments to which the Act applies, to be appointed by the State Government after consultation with such organisations of the workmen, if any, as may be recognised by the State Government in this behalf. (The State Board is under Section 4 and the Central Board is under Section 3 of the Act).

4.

Terms of office.

(1)

The Chairman of the Board shall hold office as such for a period of three years from the date on which his appointment is first notified in the Official Gazette.

(2)

Each of the members of the Board referred to in Clauses (c) and (d) of Rule 3, shall hold office as such during the

pleasure of the Government of Assam.

(3)

Each of the members referred to in Clauses (e) and (f) of Rule 3 shall hold office as such for a period of three years commencing from the date on which his appointment is first notified in the Official Gazette :

Provided that where the successor of any such member has not been notified in the Official Gazette on or before the expiry of the said period of three years, such member shall, notwithstanding the expiry of the period of his office, continue to hold such office until the appointment of his successor has been notified in the Official Gazette.

5.

Resignation.

- A member of the Board not being an ex-officio member may resign his office by a letter in writing addressed to the State Government and on such resignation being accepted by the Government his office shall fall vacant on the date on which such resignation is accepted.

6.

Cessation of membership.

- If any member of the Board, not being an ex-officio member fails to attend three consecutive meetings of the Board, without obtaining the leave of the Chairman for such absence, he shall cease to be a member of the Board :

Provided that the State Government may, if it is satisfied that such member was prevented by sufficient cause from attending three consecutive meetings of the Board, direct that such cessation shall not take place and on such direction being made, such member shall continue to be a member of Board.

7.

Disqualification for membership.

(1)

A person shall be disqualified for being appointed, and for being a member of the Board-

(i)

if he is of unsound mind and stands so declared by a competent Court; or

(ii)

if he is an undischarged insolvent; or

(iii)

if he has been convicted of an offence which, in the opinion of the State Government, involves moral turpitude.

(2)

If a question arises as to whether a disqualification has been incurred under sub-rule (1) the State Government shall decide the same.

8.

Removal from membership.

- The State Government may remove from office any member of the Board, if in its opinion such a member has ceased to represent the interest which he purports represent the Board :

Provided that no such member shall be removed unless a reasonable opportunity is given to him of making any representation against the proposed action.

9.

Vacancy.

(1)

When a vacancy occurs or is likely to occur in the membership of the Board the Chairman shall submit a report to the State Government and on receipt of such report, the State Government shall take steps to fill such vacancy.

(2)

If any vacancy occurs in the membership of the Board by reason of death of, or resignation by, a member, the vacancy caused thereby shall be filled by the State Government by making an appointment from amongst the category of persons to which the deceased or the resigned member, as the case may be, belonged and the person so appointed shall hold office for the remainder of the term of office of the member in whose place he is appointed.

10.

Staff.

(1)

(i)

The State Government may appoint one of his officials as Secretary to the Board and appoint such other staff as it may think necessary to enable the Board to carry out its functions.

(ii)

The salaries and allowances payable to the staff and the other conditions of service of such staff shall be such as may be decided by the State Government.

(2)

The Secretary-

(i)

shall assist the Chairman in convening meeting of the Board ;

(ii)

may attend the meetings but shall not be entitled to vote at such meetings ;

(iii)

shall keep a record of the minutes of such meetings ; and

(iv)

shall take necessary measure to carry out the decisions taken at the meetings of the Board.

11.

Allowances of members.

(1)

The travelling allowances of an official member shall be governed by the rules applicable to him for journey performed by him on official duties and shall be paid by the authority paying the salary.

(2)

The non-official members of the Board shall be paid travelling allowances for attending the meeting of the Board at such rates as are admissible to Grade I Officers of the State Government and daily allowances shall be calculated at the maximum rate admissible to Grade I Officers of the State Government at their respective places.

12.

Disposal of business.

- Every question which the Board is required to take into consideration shall be considered at a meeting, or if the Chairman so directs by sending the necessary papers, to every member for opinion and the question shall be disposed of in accordance with the decision of the majority :

Provided that in the case of equality of votes, the Chairman shall have a second or a casting vote.

13.

Meetings.

(1)

The Board shall meet at such places and lime as may be specified by the Chairman.

(2)

The Chairman shall preside over meeting of the Board at which he is present and in his absence a member elected by those present at the meeting shall preside over the meeting.

14.

Notice of meetings and list of business.

(1)

Ordinarily seven days' notice shall be given to the members of a proposed meeting.

(2)

No business which is not on the list of business for a meeting shall be considered at that meeting without the permission of the Chairman.

15.

Quorum.

- No business shall be transacted at any meeting unless at least four members are present:

Provided that if at any meeting less than four members are present, the Chairman may adjourn the meeting at another date informing members present and giving notice to the other members that he proposes to dispose of the business at the adjourned meeting whether there is prescribed quorum or not, and it shall thereupon be lawful for him to dispose of

the business at the adjourned meeting irrespective of the number of members attending.

16.

Committees of the Board.

(1)

(i)

The Board may constitute such Committees and for such purposes as it may think fit.

(ii)

While constituting the Committee the Board may nominate one of its members to be the Chairman of the Committee.

(2)

The Committee shall meet at such times and places as the Chairman of the said Committee may decide and the Committee shall observe such rules of procedure in regard to the transaction of business at its meeting as it may decide upon.

(3)

The provisions of Rule 11 shall apply to the members of the Committee for attending the meetings of the Committee as they apply to the members of the Board.

Chapter III

Registration and Licensing

17.

Manner of making application for registration of establishments.

(1)

The application referred to in sub-section (1) of Section 7, shall be made in triplicate in Form No. I to the Registering Officer of the area in which the establishment sought to be registered is located, and shall contain the particulars specified in sub-rule (2) of Rule 18.

(2)

The application referred to in sub-rule (1) shall be accompanied by a treasury receipt showing payment of the fees for the registration of the establishment.

(3)

Every application referred to in sub-rule (1) shall be either personally delivered to the Registering Officer or sent to him by registered post.

(4)

On receipt of the application referred to in sub-rule (1) the Registering Officer shall, after noting thereon the date of receipt by him of the application, grant an acknowledgement to the applicant.

18.

Grant of certificate of registration.

(1)

The certificate of registration granted under sub-section (2) of Section 7 shall be in Form No. II.

(2)

Every certificate of registration granted under sub-section (2) of Section 7 shall contain the following particulars, namely:

(a)

the name and address of the establishment;

(b)

the maximum number of workmen employed as contract labour in the establishment;

(c)

the type of business, trade, industry, manufacture or occupation which is carried on in the establishment;

(d)

such other particulars as may be relevant to the employment of contract labour in the establishment.

(3)

The Registering Officer shall maintain a register in Form No. III showing the particulars of establishments in relation to which certificates of registration have been granted.

(4)

If, in relation to an establishment, there is any change in particulars specified in the certificate of registration, the

principal employer of the establishment shall intimate to the Registering Officer, within fifteen days from the date when such change takes place, the particulars of, and the reasons for, such change.

19.

Circumstances in which applications for the registration may be rejected.

(1)

If any application for registration is not complete in all respects, Registering Officer shall require the principal employer to amend the application so as to make it complete in all respects.

(2)

If the principal employer, on being required by the Registering Officer to amend his application for registration, omits or fails to do so, the Registering Officer shall reject the application.

20.

Amendment of certificate of registration.

(1)

Where, on the receipt of the intimation under sub-rule (4) of Rule 18, the Registering Officer is satisfied that an amount higher than the amount which has been paid by the principal employer as fees for the registration of the establishment is payable, he shall require such principal employer to deposit a sum which, together with the amount already paid by such principal employer, would be equal to such higher amount of fees payable for the registration of the establishment and produce the treasury receipt showing such deposit.

(2)

Where on receipt of the intimation referred to in sub-rule (4) of Rule 18, the Registering Officer is satisfied that there has occurred a change in the particulars of the establishment as entered in the register in Form No. III, he shall amend the said register and record therein the change which has occurred :

Provided that no such amendment shall affect anything done or any action taken or any right, obligation or liability acquired or incurred before such amendment:

Provided further that the Registering Officer should not carry out an amendment in the register in Form No. III unless the appropriate fees has been deposited by the principal employer.

21.

Application for a licence.

(1)

Every application by a contractor for the grant of a licence shall be made in triplicate, in Form No. IV to the Licensing Officer of the area in which the establishment in relation to which he is the contractor, is located.

(2)

Every application for the grant of a licence shall be accompanied by a certificate of the principal employer in Form No. V to the effect that the applicant has been employed by him as a contractor in relation to his establishment and that he undertakes to be bound by all the provisions of the Act and the rules made thereunder in so far as the provisions are applicable to him as principal employer in respect of the employment of contract labour by the applicant.

(3)

Every such application shall be either personally delivered to the Licensing Officer or sent to him by registered post.

(4)

On receipt of the application referred to in sub-rule (1) the Licensing Officer shall, after noting thereon the date of receipt of the application, grant an acknowledgement to the applicant.

(5)

Every application referred to in sub-rule (1) shall also be accompanied by treasury receipt showing-

(i)

the deposit of the security at the rates specified in Rule 24, and

(ii)

the payment of the fees at the rates specified in Rule 26.

22.

Matters to be taken into account in granting or refusing a licence.

- In granting or refusing to grant a licence, the Licensing Officer shall take the following matters into account, namely:

(a)

whether the applicant-

- (i)
is a minor, or
- (ii)
is of unsound mind and stands to declared by a competent court, or
- (iii)
is an undischarged insolvent, or
- (iv)
has been convicted (at any time during a period of five years immediately proceeding the date of application) of an offence which, in the opinion of the State Government, involves moral turpitude;
- (b)
whether there is an order of an appropriate Government or an award or settlement for the abolition of contract labour in respect of the particular type of work in the establishment in relation to which the applicant is a contractor ;
- (c)
whether an order has been made in respect of the applicant under sub-section (1) of Section 14 and, if so, whether a period of three years has elapsed from the date of that order ;
- (d)
whether the fees for the application have been deposited at the rates specified in Rule 26 ; and
- (e)
whether security has been deposited by the applicant at the rates specified in Rule 24.

23.

Grant or refusal of licence.

(1)

On receipt of the application and as soon as possible thereafter, the Licensing Officer shall make such enquiry as he considers necessary to satisfy himself about the eligibility of the applicant for a licence.

(2)

(i)

Where the licensing officer is of opinion that the licence should not be granted, he shall, after affording reasonable opportunity to the applicant to be heard, make an order rejecting the application.

(ii)

The order shall record the reasons for the refusal and shall be communicated to the applicant.

24.

Security.

- Before a licence is issued, an amount calculated at the rate of Rs. 30 for each of the workman employed as contract labour, in respect of which the application for licence has been made, shall be deposited by the contractor for the due performance of the conditions of the licence and the compliance with the provisions of the Act or the rules made thereunder.

25.

Form and terms and conditions of licence.

(1)

Every licence granted under Rule 23 shall be in Form No. VI.

(2)

Every licence granted under Rule 23 or renewed under Rule 29 shall be subject to the following conditions, namely:

(i)

the licence shall be non-transferable ;

(ii)

the number of workmen employed as contract labour in the establishment shall not, on any day, exceed the maximum number specified in the licence ;

(iii)

save as provided in these Rules, the fees paid for the grant or, as the case may be, for renewal of the licence shall be non-refundable ;

(iv)

the rates of wages payable to the workmen to the contractor shall not be less than the rates prescribed under the Minimum Wages Act, 1948 (11 of 1948) for such employment where applicable and where the rates have been fixed by the agreement, settlement or award, not less than the rates so fixed ;

(v)

(a)

in cases where the workmen employed by a contractor perform the same kind of work as the workmen directly employed by the same principal employer of the establishment, the hours of work and the conditions of service of the workmen of the contractor shall be the same as applicable to the workmen directly employed by the principal employer of the establishment on the same or similar kind of work ;

(b)

in other cases the hours of work and conditions of service of the workmen of the contractor shall be such as may be specified in this behalf by the Labour Commissioner, Assam.

Explanation. - While determining the hours of work and other conditions or service under Clause (b) above, the Labour Commissioner shall have due regard to the hours of work and other conditions of service obtaining in similar employments ;

(vi)

(a)

in every establishment where twenty or more women are ordinarily employed as contract labour, there shall be provided two rooms of reasonable dimensions for the use of their children under the age of six years ;

(b)

one of such rooms shall be used as a playroom for the children and the other as bedroom for the children ;

(c)

the contractor shall supply adequate number of toys and games in the playroom and sufficient number of costs and beddings in the sleeping room;

(d)

the standard of construction and maintenance of the creches shall be such as may be specified in this behalf by the Labour Commissioner, Assam;

(vii)

the licence shall notify any change in the number of workmen and the conditions of work to the licensing officer.

26.

Fees.

(1)

The fees to be paid for the grant of certificate of registration under Section 7 shall be as specified below namely :

If the number of workmen proposed to be employed on contract on any day-

Rs.

(a)

is 20

20

(b)

exceeds 20 but does not exceed 50

50

(c)

exceeds 50 but does not exceed 100

100

(d)

exceeds 100 but does not exceed 200

200

(e)

exceeds 200 but does not exceed 400

400

(f)
exceeds 400
500

(2)
The fees to be paid for the grant of renewal of licence under Section 12 shall be specified as below :
If the number of workmen employed by the contractor on any day-

Rs.
(a)
is 20
5.00
(b)
exceeds 20 but does not exceed 50
12.50
(c)
exceeds 50 but does not exceed 100
25.00
(d)
exceeds 100 but does not exceed 200
50.00
(e)
exceeds 200 but does not exceed 400
100.00
(f)
exceeds 400
125.00

27.
Validity of the licence.

- Every licence granted under Rule 23 or renewed under Rule 29 shall remain in force until 31st December of the year for which the licence is granted or renewed.

28.
Amendment of the licence.

(1)
A licence issued under Rule 23 or renewed under Rule 29 may, for good and sufficient reasons, be amended by the Licensing Officer.

(2)
The contractor who desires to have the licence amended shall submit to the licensing officer an application stating the nature of the amendment and the reasons therefor.

(3)
(i)
If the Licensing Officer allows the application he shall require the applicant to furnish a treasury receipt for the amount, if any, by which the fees that would have been payable if the licence has been originally issued in the amended form exceeds the fees originally paid for the licence.

(ii)
On the applicant furnishing the requisite treasury receipt the licence shall be amended according to the orders of the Licensing Officer.

(4)
Where the application for the amendment is refused the Licensing Officer shall record the reasons for such refusal and communicate the same to the applicant.

29.
Renewal of licence.

(1)

Every contractor shall apply to the Licensing Officer for renewal of the licence before its validity expires.

(2)

Every such application shall be in Form No. VII in triplicate and shall be made not less than 60 days before the date on which the licence expires and if the application is so made the licence shall be deemed to have been renewed until such date when the renewed licence is issued.

(3)

The fees chargeable for the renewal of the licence shall be the same as for the grant therefor :

Provided that if the application for renewal is not received within the time specified in sub-rule (2) a fee of 25 per cent in excess of the fees ordinarily payable for the licence shall be payable for such renewal:

Provided further that in case where the Licensing Officer is satisfied that the delay in submission of the application is due to unavoidable circumstances beyond the control of the contractor, he may reduce or remit as he thinks fit the payment for such excess fee.

30.

Issue of duplicate certificate of registration or licence.

- Where the certificate of registration or a licence granted or renewed under the preceding rules has been lost, defaced or accidentally destroyed a duplicate may be granted on payment of fees of rupees five.

31.

Refund of security.

(1)

(i)

On expiry of the period of licence the contractor may, if he does not intend to have his licence renewed, make an application to the Licensing Officer for the refund of the security deposited by him under Rule 23.

(ii)

If the Licensing Officer is satisfied that there is no breach of the conditions of licence or there is no order under Section 14 for the forfeiture of the security or any portion thereof, he shall direct the refund of the security to the applicant.

(2)

If there is any order directing the forfeiture of any portion of the security, the amount to be forfeited shall be deducted from the security deposit and balance, if any, refunded to the applicant.

(3)

Any application for refund shall, as far as possible, be disposed of within 60 days, of the receipt of the application.

Chapter IV

Appeal and Procedure

32.

(1)

(i)

Every appeal under sub-section (1) of Section 15 shall be preferred in the form of a memorandum signed by the appellant or his authorised agent and presented to the Appellate Officer in person or sent to him by registered post.

(ii)

The memorandum shall be accompanied by a certified copy of the order appealed from and a treasury receipt of Rs. 10.

(2)

The memorandum shall set forth concisely and under distinct heads the grounds of appeal to the order appealed from.

33.

(1)

Where the memorandum of appeal does not comply with the provisions of sub-rule (2) of Rule 32 it may be rejected or returned to the appellant for the purpose of being amended within a time to be fixed by the Appellate Officer.

(2)

Where the Appellate Officer rejects the memorandum under sub-rule (1) he shall record the reasons for such rejection and communicate the order to the appellant.

(3)

Where the memorandum of an appeal is in order the Appellate Officer shall admit the appeal, endorse thereon the date of presentation and shall register the appeal in a book to be kept for the purpose called the Register of Appeals.

(4)

(i)

When the appeal has been admitted, the Appellate Officer shall send the notice of the appeal to the Registering Officer or the Licensing Officer, as the case may be, from whose order the appeal has been preferred and the Registering Officer or the Licensing Officer shall send the record of the case to the Appellate Officer.

(ii)

On receipt of the record, the Appellate Officer shall send a notice to the appellant to appear before him at such date and time as may be specified in the notice for the hearing of the appeal.

34.

If on the date fixed for hearing, the appellant does not appear, the Appellate Officer may dismiss the appeal for default of appearance of the appellant.

35.

(i)

Where appeal has been dismissed under Rule 34 the appellant may apply to the Appellate Officer for the re-admission of the appeal, and where it is proved that he was prevented by any sufficient cause from appearing when the appeal was called on for hearing, the Appellate Officer shall restore the hearing on its original number.

(ii)

Such an application shall, unless the Appellate Officer extends the time for sufficient reasons, be made within 30 days of the date of dismissal.

36.

(1)

If the appellant is present when the appeal is called on for hearing, the Appellate Officer shall proceed to hear the appellant or his authorised agent and any other person summoned by him for this purpose and pronounce judgment on his appeal either confirming, reversing or varying the order appealed from.

(2)

The judgement of the Appellate Officer shall state the points for determination, the decisions thereon and the reasons for the decisions.

(3)

The order shall be communicated to the appellant and the copy thereof shall be sent to the Registering Officer or the Licensing Officer from whose order the appeal has been preferred.

37.

Payment of fees.

- All fees to be paid under these rules shall be paid in the local treasury under the Head of Account "XXXII-Misc-Social and Development Organisations-Contract Labour-Licence fees (Assam)", and a receipt obtained, shall be submitted with the application or the memorandum of appeal as the case may be.

38.

Copies.

- Copies of the order of the Registering Officer or the Appellate Officer can be obtained on payment of fees of rupees two for each order and on an application specifying the date and other particulars of the order, made to the officer concerned.

Chapter V

39.

Welfare and health of contract labour.

(1)

The facilities required to be provided under Sections 18 and 19 of the Act namely, sufficient supply of wholesome drinking water, a sufficient number of latrines and urinals, washing facilities and first aid facilities, shall be provided by the contractor in the case of the existing establishments within thirty days of the commencement of these Rules and in the new establishments within thirty days of the commencement of the employment of contract labour therein.

(2)

If any of the facilities mentioned in sub-rule (1) is not provided by the contractor within the period prescribed, the same shall be provided by the principal employer within 15 days of the expiry of the period laid down in the said sub-rule.

40.

(1)

In every place wherein contract labour is required to halt at night in connection with the working of the establishment to which the Act applies and in which employment of contract labour is likely to continue for three months or more, the contractor shall provide and maintain rest rooms or other suitable alternative accommodations within fifteen day of the coming into force of the Rules in the case of existing establishment and within fifteen days of the commencement of the employment of contract labour in case of new establishment.

(2)

If the amenity referred to in sub-rule (1) is not provided by the contractor within the period prescribed, the principal employer shall provide the same within fifteen days of the expiry of the period laid down in the said sub-rule.

(3)

Separate rooms shall be provided for women employees.

(4)

Effective and suitable provision shall be made in every room for securing and maintaining adequate ventilation for the circulation of fresh air and there shall also be provided and maintained sufficient and natural or artificial lighting.

(5)

The rest room or rooms or other suitable alternative accommodation shall be of such dimension so as to provide a space of 3m x 2m for each person making use of the rest room.

(6)

The rest room or rooms or other suitable alternative accommodation shall be so constructed as to afford adequate protection against heat, wind, rain and shall have smooth, hard and impervious surface.

(7)

The rest room or other suitable alternative accommodation shall be at a convenient distance from the establishment and shall have adequate supply of wholesome drinking water.

41.

(1)

In every establishment to which the Act applies and wherein work regarding the employment of contract labour is likely to continue for six months and wherein contract labour numbering one hundred or more are ordinarily employed, an adequate canteen shall be provided by the contractor for the use of such contract labours within sixty days of the date of coming into force of the Rules in the case of the existing establishments and within 60 days of the commencement of the employment of contract labour in the case of new establishments.

(2)

If the contractor fails to provide the canteen within the time laid down, the same shall be provided by the principal employer within 60 days of the expiry of the time allowed to the contractor.

(3)

The canteen shall be maintained by the contractor or principal employer, as the case may be, in an efficient manner.

42.

(1)

The canteen shall consist of at least a dining hall, kitchen, store room, pantry and washing places separately for workers and for utensils.

(2)

(i)

The canteen shall be sufficiently lighted at all times when any person has access to it.

(ii)

The floor and inside walls shall be made of smooth and impervious material and the inside walls shall be lime-washed and colour-washed at least once in each year :

Provided that the inside walls of the kitchen shall be lime- washed every four months.

(3)

(i)

The precincts of the canteen shall be maintained in a clean and sanitary condition.

(ii)

Waste water shall be carried away in suitable covered drains and shall not be allowed to accumulate so as to cause a nuisance.

(iii)

Suitable arrangements shall be made for the collection and disposal of garbage.

43.

(1)

The dining hall shall accommodate at a time at least 50 per cent of the contract labour working at a time.

(2)

The floor area of the dining hall, excluding the area occupied by the service counter and any furniture except tables and chairs shall not be less than one sq. m. per dinner to be accommodated as prescribed in sub-rule (1).

(3)

(i)

A portion of the dining hall and service counter shall be partitioned off and reserved for women workers in proportion to their number.

(ii)

Washing places for women shall be separated and screened to secure privacy.

(4)

Sufficient table, stools, chairs or benches shall be available for the number of diners to be accommodated as prescribed in sub-rule (1).

44.

Equipment.

(1)

(i)

There shall be provided and maintained sufficient utensils, crockery, cutlery, furniture and any other equipment necessary for the efficient running of the canteen.

(ii)

Suitable clean clothes for the employees serving in the canteen shall also be provided and maintained.

(2)

(i)

The furniture, utensils and other equipment shall be maintained in a clear and hygienic condition.

(ii)

A service counter, if provided, shall have a top of smooth and impervious material.

(iii)

Suitable facilities including an adequate supply of hot-water shall be provided for the cleaning of the utensils and equipment.

45.

Prices to be displayed.

- The charge per portion of foodstuff, beverages and other items served in the canteen shall be conspicuously displayed in the canteen.

46.

Foodstuff to be served.

- The foodstuff and other items to be served in the canteen shall be in conformity with the normal habits of the contract labour.

47.

The canteen shall be run on no-profit no-loss ; provided that the following items shall not be taken into consideration as expenditure, namely :

(a)

the rent for the land and building ;

(b)

the depreciation and maintenance charges for the building and equipment provided for in the canteen ;

(c)

the cost of purchase, repairs and replacements of equipments including furniture, crockery, cutlery and utensils ;

(d)

the water charges and the other charges incurred for lighting and ventilation;

(e)

the interest on the amounts spent on the provision and maintenance of furniture and equipment provided for in the canteen.

48.

The books of account and registers and other documents used in connection with the running of the canteen shall be produced on demand to an Inspector.

49.

The accounts pertaining to the canteen shall be audited once every twelve months by registered accountants and auditors.

50.

Latrines and urinals.

- Latrines shall be provided in every establishment coming within the scope of the Act on the following scale, namely :

(a)

where females are employed, there shall be at least one latrine for every 20 females,

(b)

where males are employed, there shall be at least one latrine for every 20 males :

Provided that where the number of males and females exceeds 100 it shall be sufficient if there is one latrine for every 20 males or females, as the case may be, up to the first 100 and one for every 30 thereafter.

51.

Every latrine shall be under cover and so partitioned off as to secure privacy, and shall have a proper door and fastenings.

52.

(i)

Where workers of both sexes are employed there shall be displayed outside each block of latrine and urinal a notice in the language understood by the majority of the workers "For Men Only" or "For Women Only" as the case may be.

(ii)

The notice shall also bear the figure of a man of a woman, as the case may be.

53.

There shall be at least one urinal for male workers up to 50 and one for female workers up to 50 employed at a time :

Provided that where the number of male or female workers, as the case may be, exceeds 500 it shall be sufficient if there is one urinal for every 50 males or females up to the first 500 and one for every 100 or part thereafter.

54.

(1)

The latrines and urinals shall be so situated as to be conveniently accessible to workers at all times at the establishment.

(2)

(i)

The latrines and the urinals shall be adequately lighted and shall be maintained in a clean and in a sanitary condition at all times.

(ii)

Latrines and urinals other than those connected with a flush sewage system shall comply with the requirements of the public health authorities.

55.

Water shall be provided by means of a tap or otherwise so as to be conveniently accessible in or near the latrine and urinals.

56.

(1)

In every establishment coming within the scope of the Act, adequate and suitable facilities for washing shall be provided

and maintained for use of contract labour employed therein.

(2)

Separate and adequate screening facilities shall be provided for male and female workers.

(3)

Such facilities shall be conveniently accessible and shall be kept in clean and hygienic condition.

(4)

The washing facilities shall include the provisions of adequate number of buckets and tumblers or mugs and water supply at the rates of 20 litres a day for each workman employed.

57.

In every establishment coming within the scope of the Act, there shall be provided and maintained so as to be readily accessible during all working hours, first-aid boxes at the rate of not less than one box for 150 contract labour or part thereof.

58.

(1)

The first-aid box shall be distinctively marked with a red cross on a white ground and shall contain the following equipments, namely:

A. For establishments in which the number of contract labour employed does not exceed fifty-Each first aid box shall contain the following equipments :

(i)

6 small sterilised dressings.

(ii)

3 medium size sterilised dressings.

(iii)

3 large size sterilised dressings.

(iv)

3 large sterilised burn dressings.

(v)

1 (30 ml) bottle containing 2 per cent alcoholic solution of iodine.

(vi)

1 (30 ml) bottle containing sal volatile having the dose and mode of administration indicated on the label.

(vii)

1 snake bite lancet.

(viii)

1 (30 gms) bottle of potassium permanganate crystals.

(ix)

1 pair scissors.

(x)

1 copy of the first-aid leaflet issued by the Director General, Factory Advice Service and Labour Institutes, Government of India.

(xi)

A bottle containing 100 tablets (each of 5 grams) of aspirin.

(xii)

Ointment for burns.

(xiii)

A bottle of suitable surgical anti-septic solution.

B. For the establishments in which the number of contract labour exceeds fifty-Each first-aid box shall contain the following equipments :

(i)

12 small size sterilised dressings.

(ii)

6 medium size sterilised dressings.

(iii)

6 large size sterilised dressings.

(iv)

6 (15 gms) packets of sterilised cotton wool.

(v)

1 (60 ml) bottle containing a two per cent alcoholic solution iodine.

(vi)

1 (60 ml) bottle containing sal volatile having the dose and mode of administration indicated on the label.

(vii)

1 roll of adhesive plaster.

(viii)

A snake bite lancet.

(ix)

1 (30 gms) bottle of potassium permanganate crystals.

(x)

1 pair scissors.

(xi)

1 copy of the first-aid leaflet issued by the Director General, Factory Advice Service and Labour Institutes, Government of India.

(xii)

A bottle containing 100 tablets (each of 5 grams) of aspirin.

(xiii)

Ointment for burns.

(xiv)

A bottle of suitable surgical anti-septic solution.

(2)

Adequate arrangement shall be made for immediate recoupment of the equipment when necessary.

59.

Nothing except the prescribed contents shall be kept in the first-aid box.

60.

The first-aid box shall be kept in charge of a separate responsible person who shall always be readily available during the working hours of the establishment.

61.

A person in charge of the first-aid box shall be a person trained in first-aid treatment, in establishments where the number of contract labour employed is 150 or more.

Chapter VI

Wages

62.

Wages.

- The contractor shall fix wage periods in respect of which wages shall be payable.

63.

No wage period shall exceed one month.

64.

Wages of every worker shall be paid within three days from the end of the wage period in case the wage period is one week or a fortnight and in all other cases before the expiry of the tenth or the seventh day from the end of the wage period according as the number of workers employed in such establishment does or does not exceed a thousand.

65.

Where the employment of any worker is terminated by or on behalf of the contractor, the wages earned by him shall be paid before the expiry of the day succeeding the one on which his employment is terminated.

66.

All payments of wages shall be made on a working day at the work site and during the working time and on a date

notified in advance. In case the work is completed before the expiry of wage period, final payment shall be made within 48 hours of the last working day.

67.

Wages due to every worker shall be paid to him direct or to the other person authorised by him in this behalf.

68.

All wages shall be paid in current coin or currency or in both.

69.

Wages shall be paid without any deduction of any kind except those specified by the State Government by general or special order in this behalf or permissible under the Payment of Wages Act, 1936 (

4 of 1936

).

70.

A notice showing the wage period and the place and the time of disbursement of wages shall be displayed at the place of work and a copy sent by the contractor to the principal employer under acknowledgement.

71.

The principal employer shall ensure the presence of his authorised representative at the place and time of disbursement of wages by the contractor to workmen. It shall be the duty of the contractor to ensure the disbursement of wages in the presence of such authorised representative.

72.

(i)

Entries denoting the time and place of payment of wages and the payments actually made shall be made in the register of wages simultaneously as the payments are made.

(ii)

The authorised representative of the principal employer shall affix his initial against cash entry and further record a certificate at the end of the entries in the following form :

"Certified that the amount shown in column No has been paid to the workmen concerned in my presence."

Chapter VII

Registers and Records and Collection of Statistics

73.

Register of Contractors.

- Every principal employer shall maintain in respect of each registered establishment a Register of Contractors in Form No. VIII.

74.

Register of persons employed.

- Every contractor shall maintain in respect of each registered establishment where he employs contract labour a register in Form No. IX.

75.

Employment Card.

- (i) Every contractor shall issue an employment card in Form No. X to each worker on the first day of the employment of the worker.

(ii)

The contractor shall issue an employment card to him when employed on work.

(iii)

The card shall be maintained up-to-date and any change in the particulars shall be entered therein.

76.

Service certificate.

- On termination of employment for any reason whatsoever the contractor shall issue to the workman whose services have been terminated a service certificate in Form No. XL

77.

Muster Roll, Wages Register, Deduction Register, and Overtime Register.

(1)

In respect of establishments which are governed by the Payment of Wages Act and the rules made thereunder, or the Minimum Wages Act or the Rules made thereunder, the following registers and records required to be maintained by the contractor as employer under those Acts and the rules made thereunder shall be deemed to be registers and records required to be maintained by the contractor under these Rules :

- (a)
Muster Roll.
- (b)
Register of Wages.
- (c)
Register of Deductions.
- (d)
Register of Overtimes.
- (e)
Register of Fines.
- (f)
Register of Advances.

(2)

In respect of establishments not covered under sub-rule (1), the following provisions shall apply, namely :

- (a)
Every contractor shall maintain a Muster Roll Register and a Register of Wages in form No. XII and Form No. XII respectively :

Provided that a combined Muster Roll-cum-Wages Register in Form No. XIV shall be maintained by the contractor where the wage period is one week or less.

- (b)
Every contractor shall issue wages slip in Form No. XV to workers at least a day prior to the disbursement of wages.
- (c)
Signature or thumb impression of every worker on the Register of Wages or Wages-cum-Muster Roll, as the case may be, shall be obtained and the entries therein, shall be authenticated by the initials of the contractor or his representative, and duly certified by the authorised representative of the principal employer as required by Rule 72.

- (d)
Registers of Deductions, Fines and Advances. - Register of Deductions for damages or loss, Register of Fines and Register of Advances shall be maintained by every contractor in Form No. XVI, XVII, and XVIII respectively.

- (e)
Register of Overtime. - A Register of Overtime shall be maintained by every contractor in Form XIV to record therein number of hours and wages paid for overtime work, if any.

78.

Every contractor shall display an abstract of the Act and the rules in English and in the language of the State and in the language spoken by the majority of workers in such form as may be approved by the Labour Commissioner.

79.

- (1)
All registers and other records required to be maintained under the Act and rules, shall be maintained complete and up-to-date, and unless otherwise provided for, shall be kept at an office or the nearest convenient building within the precincts of the work place or at a place within a radius of three kilometers.

- (2)
Such registers shall be maintained legibly in English or language of the State.

- (3)
All the registers and others records shall be preserved in original for period of three calendar years from the date of last entry therein.

- (4)
All the registers, records and notices-maintained under the Act or rules shall be produced on demand before the Inspector or any other authority under the Act or any person authorised in that behalf by the Central Government.

80.

(1)

(i)

Notices showing the rates of wages, hours of work, wage periods, dates of payment of wages, names and addresses of the Inspectors having jurisdiction and date of payment of unpaid wages, shall be displayed in English and in language of the State and in local language understood by the majority of the workers in a conspicuous place at the establishment and work site by the principal employer or the contractor, as the case may be.

(ii)

The notices shall be correctly maintained in a clean and legible condition.

(2)

A copy of the notice shall be sent to the Inspector and whenever any change occurs the same shall be communicated to him forthwith.

81.

(1)

Every contractor shall send half yearly return in Form XX (in duplicate) so as to reach the Licensing Officer concerned not later than 30 days from the close of the quarter.

Note. - Quarter for the purpose of this rule means a period of three months commencing from the 1st January, 1st April, 1st July and 1st October of every year.

(2)

Every principal employer of a registered establishment shall send annually a return in Form XXI (in duplicate) so as to reach the Registering Officer concerned not later than the 15th February following the end of the year to which it relates.

82.

(i)

The Board, Committee, Labour Commissioner, Assam or the Inspector or any other authority under the Act shall have powers to call for any information or statistics in relation to contract labour from any contractor or principal employer at any time by an order in writing.

(ii)

Any person called upon to furnish the information under sub-rule (1) shall be legally bound to do so.

Form I

[See Rule 17(1)]

Application for registration of establishments employing contract labour

1. Name and location of the establishment.....

2. Postal address of the establishment.....

3. Full name and address of the principal employer (furnish father's name in case of individuals).....

4. Full name and address of the manager to person responsible for the supervision and control of the establishment.....

5. Particulars of contractors and contract labour :

Name and addresses of contractors

Nature of work in which contract labour is
employed or is to be employed

Maximum number of contract labour to be employed
on any day through each contractor

Estimated date of termination of employment of
contract labour

1

2

3

4

1.2.3.

6. Particulars of Treasury Receipt enclosed....

I hereby declare that the particulars given above are true to the best of my knowledge and belief.

Principal Employer

Seal and Stamp

Office of the Registering Officer

Signature of Registering Officer

Time and date of receipt of application
with Treasury Receipt No. and date.

Form II

[See Rule 18(1)]

Certificate of Registration

Office of the Registering Officer

A certificate of registration containing the following particulars is hereby granted under sub-section (2) of Section 7 of the Contract Labour (Regulation and Abolition) Act, 1970, and the rules made thereunder to-

Name and addresses of contractors

Nature of work in which contract labour is
employed or is to be employed

Maximum number of contract labour to be employed
on any day through each contractor

Estimated date of termination of employment of
contract labour

1

2

3

4

1.2.3.

Place.....

Date.....

Signature of Registering Officer with seal

Form III

[See Rule 18(3)]

Register of establishments

Serial No.

Registration certificates No.

Name and address of the establishment registering

Name of the principal employer and his address

Total number of workmen directly employed

Particulars of contractor and contract labour

Remarks

Name and address of contractor

Nature of work in which contract labour is
employed or is to be employed

Maximum number of contract labour to be employed
on any day through each contractor

Estimated date of termination of contract labour

1

2

3

4

5

6

7

8

9

10

Form IV

[See Rule 21(1)]

Application for licence

1. Name and address of the contractor (including his father's name)...
2. Particulars of establishments where contract labour is to be employed-

Name and address of the establishment

No. and date of certificate of registration of
the establishment under the Act

Name and address of the principal employer

Particulars of contract labour

Nature of process, operation or work for which
contract labour is to be employed

Duration if the proposed contract work (give
proposed date of commencing and ending)

Name and address of the agent or manager of
contractor at the work establishment

Maximum number of employees proposed to be
employed as contract labour in the establishment

1

2

3

4

5

6

7

3. Whether the contractor has worked in any other establishment, within the past five years ; if so, details of the principal employer, establishment and nature of work....

4. The estimated value of the contract work.....

5. No. and date of the treasury receipt enclosed....

Declaration

I hereby declare that the details given above are correct to the best of my knowledge and belief.

Signature of the applicant (Contractor)

Place.....

Date.....

Note : The application should be accompanied by a treasury receipt and a certificate in Form V from each of the principal employers.

(To be filled in office of the Licensing Officer)

Date of receipt of the application with challan for fees/security deposit

Signature of the Licensing Officer

Form V

[See Rule 21(2)]

Form of certificate by principal employer

Certified that I have engaged the applicant as a contractor in my establishment. I undertake to be bound by all the provisions of the Contract Labour (Regulation and Abolition) Act, 1970, and the Assam Contract Labour (Regulation and Abolition) Rules, 1971, in respect of the employment of contract labour by the applicant in my establishment.

Signature of Principal Employer

Place.....

Date.....

Name and address of establishment

Form VI

[See Rule 25(1)]

Office of the Licensing Officer.....

Licence No.

Dated

Fees paid Rs.....

Licence

Licence is hereby granted to..... under Section 12(2) of the Contract Labour (regulation and Abolition Act, 1970 subject to the conditions specified in Annexure.

The licence shall remain in force till.....

Signature and Seal of the Licensing Officer

Date.:

Renewal

[Rule 29]

Date of renewal

Fee paid for renewal

Date of expiry

1.

2.

3.

Signature and seal of the Licensing Officer

Date :

Annexure

The licence is subject to the following conditions :

1. The licence shall be non-transferable.

2. The number of workmen employed as contract labour in the establishment shall not, on any day, exceed.....

3. Except as provided in the rules the fees paid for the grant or, as the case may be, for renewal of the licence shall be non-refundable.

4. The rates of wages payable to the workmen by the contractor shall not be less than the rates prescribed for the Schedule of employment under the Minimum Wages Act, 1948, where applicable, and where the rates have been fixed by agreement, settlement or award, not less than the rates fixed.

5. In cases where the workmen employed by the contractor perform the same or similar kind of work as the workmen directly employed by the principal employer of the establishment, the hours of work and other conditions of service of the workmen of the contractor shall be the same as applicable to the workmen directly employed by the principal employer of the establishment.

6. In other cases the hours of work and conditions of service of the workmen of the contractor shall be such as may be specified in this behalf by the Labour Commissioner, Assam.

7. In every establishment where twenty or more women are ordinarily employed as contract labour there shall be provided two rooms of reasonable dimensions for the use their children under the age of six years. One of such rooms would be used as a playroom for the children and the other as bed room for the children. For this purpose the contractor shall supply adequate number of toys and games in the playroom and sufficient number of costs and beddings in the sleeping room. The standard of construction and maintenance of the creches may be such as may be specified in this behalf by the Labour Commissioner, Assam.

8. The licence shall notify any change in the number of workmen or the conditions of work to the Licensing Officer.

Form VII

[See Rule 29(2)]

Part I

Application for Renewal of Licences

1. Name and address of the contractor.....

2. No. and date of the licence.....

3. Date of expiry of the previous licence....

4. Whether the licence of the contractor was suspended or revoked.....

5. No. and date of the treasury receipt enclosed.....

Signature of the applicant

Place:

Date:

(To be filed in office of the Licensing Officer)

Date of receipt of the application with Treasury Receipt No. and date.....

Signature of the Licensing Officer

Form VIII

[See Rule 73]

Part I

Registers of particulars of contractors

(1)

Name and address of the principal employer.....

(2)

Name and address of the establishment.....

Serial No.

Name and address of the contractor

Name of work on contract

Location of contract work

Period of contract

Amount/Value of contract work

Maximum number of workmen employed

Specify deposit with the principal employer

From

To

1

2

3

4

5

6

7

8

9

Part II

Process of contract work

Name of contractor..... Nature of work.....

Wage period

Maximum number of workmen employed by the contractor during the wage period

Total amount of wages earned by the workmen

Amount actually disbursed on pay day

1

2

3

4

Form IX

[See Rule 74]

Register of workmen employed by contractor

Name and address of contractor.....

Name and address of establishment in/ under which contract is

carried on.....

Nature and location of work.....

Name and address of principal employer.....

Serial No.

Name and surname of workman

Age and sex

Father's/ husband's name

Nature of employment/ designation

Permanent home address of workman (Village/ Town
and District)

Present address

Date of commencement of employment

Date of termination of employment

Signature or thumb impression of workman

Remarks

1

2

3

4

5

6

7

8

9

10

11

Form X

[See Rule 75]

Name and address of contractor.....

Name and address of establishment in/ under which contract is
carried on.....

Nature and location of work.....

Name and address of principal employer.....

Name of the workman

Sl. No. in the register of workmen employed

Nature of employment/ designation

Wage rate (with particulars of unit, in case of
piece work)

Wage period

Period of employment

Remarks

Signature of contractor

1

2

3

4

5

6

7

8

Form XI

[See Rule 76]

Service Certificate

Name and address of contractor.....

Name and address of establishment in/ under which contract is
carried on.....

Nature and location of work.....

Name and address of principal employer.....

Name and address of workman.....

Age or date of birth.....

Identification marks.....

Father's name/Husband's name.....

Serial No.

Total period for which employed

Actual number of days worked

Nature of work done

Rate of wages (with particulars of unit in case
of piece work)

Total wages earned by workmen during the period

Total deductions made, if any

Total wages actually paid

Remarks

From

To

1

2

3

4

5

6

7

8

9

10

Form XII

[See Rule 77(2)(a)]

Muster Roll

Name and address of contractor.....

Name and address of establishment in/ under which contract is
carried on.....

Nature and location of work.....

Name and address of principal employer.....

For the month of.....

Sl. No.

Name of workman

Father's/ Husband's name

Sex

Date

Remarks

1 2 3 4 5

1

2

3
4
5
6
13
14
15

Form XIII
[See Rule 77 (2)(a)]
Register of Wages
Name and address of contractor.....
Name and address of establishment in/ under which contract is
carried on.....
Nature and location of work.....
Name and address of principal employer.....
Wage period (Fortnightly Monthly)
Serial No.
Name of workman
Serial No. in the register of workman employed by
contractor
Designation/ Nature of work done
Number of days worked
Wage rate
Units of work done
Amount of wages earned
Piece rate
Basic wages
Dearness allowances
Overtime
Other such payments indicating nature of payment
Total
Total deduction
Net amount paid
Time and date of payment
Place of payment
Signature/ Thumb impression of employee
Initial of contractor or his representative
Initial of authorised representative or principal
employer

16
17
18
19
20

Form XIV

[See Rule 77(2)(a)]

Form of Register of Wages-cum-Muster-Roll

Name and address of contractor.....

Name and address of establishment in/ under which contract is
carried on.....

Nature and location of work.....

Name and address of principal employer.....

Wage period : Weekly

From..... To.....

Serial No.

Serial No. in the register of workman employed by
contractor

Name of employee

Designation/ Nature of work done

Daily attendance/ units worked1 2 3 4 5 6 7

Total attendance/ units of work done

Daily rate of wages/ piece rate

Amount of wages earned

Basic wages

Dearness allowances

Overtime

Other cash payments (Nature of payment to be
indicating)

1
2
3
4
5
6
7
8
9
10
11

Total deduction

Net amount paid

Time and date of payment

Place of payment

Signature/ Thumb impression of workmen

Initial of contractor or his representative

Initial of authorised representative or principal
employer

12
13
14

15
16
17
18

Form XV

[See Rule 77(2)(b)]

Wages Slip

Name and address of contractor.....

Name and address of establishment in/ under which contract is
carried on.....

Nature and location of work.....

Name and address of principal employer.....

Name and father's name of the workman.....

Sex and identification token/ ticket No.

For the work/ fortnight/ monthly

Number of days worked

Rate of daily wages/piece rate

Number of units worked in case of piece rate
workers

Dates on which overtime worked

Overtime hours and amount of O.T. wages

Gross wages payable

Deduction, if any

Actual wages paid

Signature of the contractor of his representative

1
2
3
4
5
6
7
8
9

Form XVI

[See Rule 77(2)(d)]

Register of Deductions for damage or loss

Name and address of contractor.....

Name and address of establishment in/ under which contract is
carried on.....

Nature and location of work.....

Name and address of principal employer.....

Serial No.

Name of workman

Father's/ Husband's Name

Designation

Particulars of damage/ loss

Date of damage or loss

Whether worked showed cause against deduction

1
2

3
4
5
6
7

Name of person in whose presence employee's
explanation was heard

Amount of deduction imposed

Number of instalments

Details of recovery of

Remarks

First instalment

Last instalment

8

9

10

11

12

13

Form XVII

[See Rule 77(2)(d)]

Register of Fines

Name and address of contractor.....

Name and address of establishment in/ under which contract is
carried on.....

Nature and location of work.....

Name and address of principal employer.....

Serial No.

Name of workman

Father's/ Husband's name

Designation

Act/ Omission for which fine imposed

Date of offence

1

2

3

4

5

6

Whether employed showed cause against fine

Name of person in whose presence employee's
explanation was heard (in case of contractors)

Rate of wages

Amount of fine imposed

Date on which fine realised

Remarks

7

8

9

10

11

12

Form XVIII

[See Rule 77(2)(d)]

Register of Advance

Name and address of contractor.....

Name and address of establishment in/ under which contract is carried on.....

Nature and location of work.....

Name and address of principal employer.....

Serial No.

Name

Father's/ Husband's Name

Nature of employment

Earnings during a wage period

Dates and amount of advance

Purpose(s) for which advance made

Number of instalments by which advance is to be repaid

Amount of instalments to be repaid with date of postponement granted

Date on which total amount paid

Signature or thumb impression of the worker

1

2

3

4

5

6

7

8

9

10

11

Form XIX

[See Rule 77(2)(e)]

Register of Overtime

Name and address of contractor.....

Name and address of establishment in/ under which contract is carried on.....

Nature and location of work.....

Name and address of principal employer.....

Serial No.

Name of workman

Father's/ Husband's name

Sex

Designation & Department

Date on which overtime work was put in

Wages of overtime on each occasion

1

2

3

4
5
6
7

Total overtime worked or production in case of
piece rated

Normal hours

Normal rates

Overtime rate

Normal charges

Overtime charges

Total earning

Date on which overtime payment is made

8
9

10

11

12

13

14

15

Form XX

[See Rule 81(1)]

Return to be sent by the contractor to Licensing Officer for the half year ending

1. Name and address of the contractor.....

2. Name and address of principal employer.....

3. Name and address of the establishment.....

4. Duration of contract: from..... to.....

5. Number of days during the half year on which contract labour was employed.....

6. Maximum number of contract labour employed on any day during the half year.....

Men

Women

Children

7. (i) Normal hours of work per day...

(ii)

(a)

Whether weekly holiday observed.....

(b)

If so, whether it is paid for..

(iii)

Particulars of rest interval and weekly spread over.....

(iv)

Rate of overtime wages.....

(v)

Number of man-hours of overtime worked during the half year.....

8. Total number of man-days worked by-

Men

Women

Children

9. Total amount of wages paid-

Men

Women

Children

10. Total amount of deductions from wages, if any, effected-

Men

Women

Children

11. Whether the contractor has provided :

(i)

Canteens

(ii)

Rest Rooms

(iii)

Drinking water

(iv)

Creches

(v)

First-aid

If the answer is 'yes' state briefly standards provided.....

Place.....

Date.....

Signature of the contractor

Form XXI

[See Rule 81(2)]

Annual returns of principal employer to be sent to the Registering Officer

Return for the year ending 31st December

1. Full name and address of the principal employer.....

2. Name of establishment.....

(a)

District.....

(b)

Postal address.....

(c)

Nature of operation/industry/work carried on.....

3. Full name of the manager or the person responsible for supervision and control of the establishment.....

4. Maximum number of workmen employed as contract labour on any day during the year.

5. Total number of days during the year on which contract labour was employed.....

6. Total number of man-days worked by contract labour during the year.....

7. Maximum number of workmen employed directly on any day during the year....

8. Total number of days during the year on which direct labour was employed.....

9. Total number of man-days worked by directly employed workmen.....

10. Nature of work on which contract labour was employed....

11. Amount of security deposit made by contractors (give contractor wise.....

12. Amount of security deposits forfeited together with the names of contractor, if any.....

13. Whether there is any change in the management of the establishment, its location, or any other particulars furnished to the Registering Officer in the form of application for registration at the time of registration. If so, from what date.....

Place.....

Date.....

Principal Employer

Related AI tags, queries and research notes

Translation